



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 11139  
(SECOND REVISION)

EXPIRATION DATE: October 31, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Alaska Pacific Powder Company, Anchorage, Alaska  
(See APPENDIX A of this exemption)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce, aboard cargo aircraft in Alaska, of Explosives, blasting, type E, Division 1.5D which are described in 49 CFR Section 175.320 as Blasting agent, n.o.s. This exemption provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 107 Appendix B to Subpart B, paragraph (1); sections 172.301(c); and 175.320(a) to allow Explosives, blasting, type E in place of Blasting agent; n.o.s.
5. BASIS. This exemption is based on Alaska Pacific Powder Company's application dated September 8, 1994 submitted in accordance with 49 CFR 107.105. Supplemental letters dated September 19, 1993, November 3 and 14, 1993, and May 11, 1994.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous materials description/proper shipping name | Hazard Class/Division | Identification number | Packing Group |
|------------------------------------------------------|-----------------------|-----------------------|---------------|
| Explosives, blasting, type E                         | 1.5D                  | UN0332                | II            |

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
  - a. Packaging must be as required by 49 CFR Section 173.62.
  - b. The requirements of 49 CFR 175.320(b) apply.

8. SPECIAL PROVISIONS.

a. The shipments will originate at Anchorage, Alaska destined for shipment throughout the state of Alaska where cargo aircraft is the only means of transportation.

b. The air carriers operating under the terms of this exemption are Southern Air Transport, Northern Air Cargo, F.S. Air Service, Evert's Air Fuel, Airlift Alaska, ERA Aviation, Ketchum Air Service, Alaska Helicopters, Gulf Air, Homer Air, and Alaska Marine Helicopters.

c. Each outside package authorized for shipment under the terms of this exemption is not required to be marked with the exemption number as required under 49 CFR Part 107, Appendix B to Subpart B, paragraph (1) and Section 172.301(a).

9. MODES OF TRANSPORTATION AUTHORIZED. Cargo aircraft only.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. In accordance with the provisions of 49 CFR Part 107, Appendix B to Subpart B, paragraph 3, the shipper shall furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

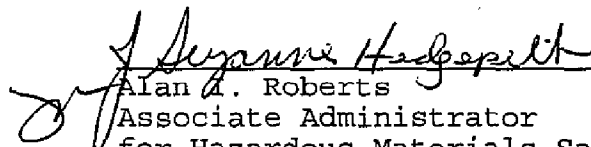
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

  
Alan D. Roberts  
Associate Administrator  
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA